

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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GEORGE BARNES,

Plaintiff,

-against-

Plaintiff designates
Queens County as the
place of trial

Basis of venue is
county of
occurrence

SUMMONS

THE CITY OF NEW YORK, NYPD OFFICER LUIS
FRANCO and NYPD OFFICER JAMES FARLEY,

Defendants.

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To the above-named defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
September 23, 2021

Yours, etc.
SIVIN, MILLER & ROCHE, LLP

By Edward Sivin
Edward Sivin

Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

To:

-The City of New York: 100 Church Street, New York, NY 10007
-NYPD Officer Luis Franco: NYPD Transit District 20, 137 Queens Blvd., Jamaica, NY 11435
-NYPD Officer James Farley: NYPD Transit District 20, 137 Queens Blvd., Jamaica, NY 11435

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
GEORGE BARNES,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, NYPD OFFICER LUIS
FRANCO and NYPD OFFICER JAMES FARLEY,

Defendants.
-----X

Plaintiff, by his attorneys SIVIN, MILLER & ROCHE LLP, complaining of
defendants, alleges as follows, upon information and belief:

THE DEFENDANTS

1. That at all times herein mentioned, defendant The City of New York
(hereinafter "the City") was and is a municipal corporation, duly organized and existing
under and by virtue of the laws of the State of New York.

2. That at all times herein mentioned, the City operated, controlled, and
maintained a police force known as the New York Police Department (hereinafter "the
NYPD").

3. That at all times herein mentioned, defendant NYPD Officer Luis Franco
(hereinafter "Franco") was and is employed as an officer with the NYPD.

4. That at all times herein mentioned, defendant NYPD Officer James Farley
(hereinafter "Farley") was and is employed as an officer with the NYPD.

5. That at all times herein mentioned, Franco and Farley were acting within
the course and scope of their employment as officers with the NYPD.

6. That at all times herein mentioned, Franco and Farley were acting under color of state law.

FACTS

7. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

8. That on November 4, 2018, at or around the Northern Boulevard subway station at Northern Boulevard and Broadway, Queens, NY, defendants, without legal provocation, probable cause, reasonable suspicion, or justification, and without a warrant, stopped plaintiff, and without plaintiff's permission and consent, forcibly grabbed, seized, and searched plaintiff, forcibly slammed plaintiff to the ground and punched, kicked, and otherwise used force against plaintiff that was not justified.

9. That following this initial seizure of plaintiff, defendants, without probable cause and without a warrant, forcibly confined and imprisoned plaintiff and/or caused plaintiff to be confined and imprisoned at various other locations, including East Elmhurst Hospital.

10. That the aforesaid actions by defendants were without legal provocation or justification, and were offensive and excessive under the circumstances.

11. That in an attempt to justify their actions, defendants made statements and filed police reports that were false and that they knew were false, including but not limited to: that defendants identified themselves as police officers during their interaction with plaintiff, that plaintiff endangered his own life, that plaintiff inflicted physical harm upon himself, and that defendants did not use force, much less excessive force, against plaintiff.

12. That Franco and Farley observe the illegal and unconstitutional conduct of his fellow officer, had reasonable opportunities to intervene to prevent and/or stop that conduct, and

deliberately failed to do so.

13. That the aforesaid actions by defendants were done intentionally and maliciously.

14. That as a result of the aforementioned actions by defendants, plaintiff sustained severe physical and psychological injuries, endured and will continue to endure pain and suffering and loss of enjoyment of life, incurred and will continue to incur medical and healthcare expenses and other economic loss, was deprived of his liberty and freedom, was damaged in his reputation, and has been otherwise damaged.

15. That upon information and belief, prior to the events alleged herein Franco and Farley had used excessive force against and had falsely arrested, falsely imprisoned, and fabricated evidence by filing false reports, and otherwise abused their authority against individuals while in the course and scope of their employment with the NYPD.

16. That upon information and belief, prior to the events alleged herein the City and the NYPD knew that Franco and Farley had used excessive force against and had falsely arrested, falsely imprisoned, and otherwise abused their authority against individuals while in the course and scope of their employment with the NYPD.

17. That upon information and belief, prior to the events alleged herein the City and the NYPD knew that Franco and Farley were unfit to act as police officers.

18. That despite the City's and the NYPD's prior knowledge of Franco's and Farley's unfitness and propensities, the City and the NYPD knowingly retained defendants as NYPD officers, thereby subjecting plaintiff to defendants' improper, illegal, and unconstitutional conduct.

FIRST CAUSE OF ACTION AGAINST FRANCO and FARLEY

(42 U.S.C. § 1983: Fourth, Fifth and Fourteenth Amendment Violations)

19. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

20. That the aforesaid actions by Franco and Farley constitute unreasonable and illegal searches and seizures of plaintiff in violation of the proscription against unreasonable searches and seizures contained in the Fourth Amendment to the U.S. Constitution, a denial of liberty of plaintiff without due process of law in violation of the Fifth Amendment to the U.S. Constitution, and an abridgement of the privileges and immunities of plaintiff, a denial of liberty of plaintiff without due process of law, and a denial of equal protection to plaintiff in violation of the Fourteenth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

SECOND CAUSE OF ACTION AGAINST THE CITY

(Monell Claim: Deliberate Indifference)

21. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

22. That the aforesaid actions by defendants and the resulting injuries to plaintiff followed and were the result of a deliberate indifference by the City and the NYPD to an ongoing pattern of conduct by Franco and Farley in which these defendants violated the constitutional rights of citizens of the State of New York.

23. That by virtue of the foregoing, plaintiff is entitled to recover monetary damages from the City under 42 U.S.C. § 1983, pursuant to *Monell v. Dep 't of Social Servs. Of N.Y.C.*, 436 U.S. 658.

WHEREFORE, plaintiff demands judgment against all defendants on the foregoing causes of action in the form of compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands punitive damages against Franco and Farley in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands attorney's fees against all defendants pursuant to 42 USC§ 1988, and the costs and disbursements of this action.

Dated: New York, New York
September 23, 2021

Yours, etc.
SIVIN, MILLER & ROCHE, LLP

By *Edward Sivin*
Edward Sivin
Attorneys for Plaintiff
20 Vesey Street, Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
September 23, 2021



EDWARD SIVIN